

24BBCV00099 24BBCV00099

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Case Number: 24BBCV00099 Hearing Date: July 17, 2026 Dept: A

MOTIONS TO COMPEL RESPONSES

MOTION TO DEEM RESPONSES TO RFA ADMITTED

Los

Angeles Superior Court Case # 24BBCV00099 (Related to Case # 25NNCV00956)

MP: Defendants/Cross-Complainants

Karo Gary Karapetyan and Anna Sukiasyan

RP: No opposition

received

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given

either by email at or by telephone at (818) 260-8412.

RELEVANT BACKGROUND AND ALLEGATIONS:

On September 19, 2025, this action (Case No. 24BBCV00099, James v. Karapetyan) was related with Lopez v. Karapetyan (Case #25NNCV00956). On January 2, 2026, the actions were consolidated and the James case was designated as the lead case.

Plaintiff

Eleanor James ("James") alleges that on February 13, 2023, she was involved in a motor vehicle collision with Defendants Karo Karapetyan ("Karapetyan") and Anna Sukiasyan ("Sukiasyan"), causing James to suffer injuries. The James Complaint, filed January 12, 2024, alleges: (1) Motor Vehicle Negligence; and (2) General Negligence. Plaintiff Bryant

Lopez ("Lopez") alleges, he was also involved in a motor vehicle collision with Karapetyan, causing Lopez to suffer injuries.

The Lopez Complaint, filed February 11, 2025, alleges: (1) Motor Vehicle Negligence; and (2) General Negligence.

Karapetyan and Sukiasyan's cross-complaints in the James and Lopez actions were dismissed without prejudice.

MOTIONS ON CALENDAR:

Karapetyan and

Sukiasyan (hereinafter, "Defendants") filed five discovery motions. The Court was notified that the Motion to Compel the Deposition was taken off calendar, but the other matters remain. On March 30, 2026, Defendants filed a motion for order deeming Requests for Admissions ("RFA"), set one, admitted against Lopez. On April 1, 2026, Defendants filed three Motions to Compel Lopez's initial

responses to: (1) Form Interrogatories ("FROG"), set one; (2) Special Interrogatories ("SROG"), set one; and (3) Request for Production of Documents ("RPD"), set one. On May 8, 2026,

Defendants filed a Motion for an Order Compelling Lopez to Appear and Testify at Deposition and to Produce Documents, but this was taken off calendar by the moving party.

As of July 15,

2026, the Court is not in receipt of an opposition brief. The Court notes that, pursuant to C.R.C. Rule

8.54(c), a failure to oppose a motion may be deemed consent to its being granted.

ANALYSIS RE MOTIONS TO COMPEL AND MOTION TO DEEM RFA ADMITTED:

A. Legal Standard

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling response and for a monetary sanction. (C.C.P. § 2030.290(b).) The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (See *Leach v. Superior Court* (1980) 111 Cal. App. 3d 902, 905-906.)

Where there has been no timely response to a demand to produce documents, the demanding party may seek an order compelling a response. (C.C.P. § 2031.300(b).) Failure to timely respond waives all objections, including privilege and work product. (C.C.P. § 2031.300(a).) Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. There is no deadline for a motion to compel responses. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion.

If a party fails to respond to requests for admission in a timely manner, the requesting party may move for an order that the matters be deemed admitted. (C.C.P. § 2033.280(b).) The requesting party's motion must be granted by the court unless the party to whom the requests for admission have been directed has served a proposed response to the requests for admission that is in substantial compliance with C.C.P. § 2033.220 prior to the hearing. (C.C.P. § 2033.280(c).) By failing to timely respond, the party to whom the requests are directed waives any objection to the requests, including one based on privilege or work product. (C.C.P. § 2033.280(a).)

B. Discussion

On

October 3, 2025, Defendants served on Lopez the discovery requests with responses due November 4, 2025. On March 20, 2026, defense counsel emailed Lopez's counsel, requesting responses by March 27, 2026. As of the filing of the motions, Defendants state that they have not received Lopez's responses.

Defendants'

unopposed motions to compel responses to the FROG, SROG, and RPD are granted pursuant to C.C.P. §§ 2030.290 and 2031.300.

Lopez is ordered to provide verified responses to the discovery requests, without objections, within 30 days of this order.

Defendants'

unopposed motion for an order deeming the RFAs admitted is granted against Lopez, pursuant to C.C.P. § 2033.280.

C. Sanctions

The Court has discretion to impose a monetary sanction against a party engaging in the misuse of the discovery process, or any attorney advising that conduct. (C.C.P. § 2023.030(a).) Sanctions are only mandatory as against a party who unsuccessfully makes or opposes a motion to compel a response to interrogatories or RPD, unless the Court finds they acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (C.C.P. §§ 2030.290(c) & 2031.300(c).) It is mandatory for the court to impose a monetary sanction on the party or attorney, or both, whose failure to serve a timely response to RFAs necessitated this motion. (C.C.P. § 2033.280(c).) Regardless, it is customary to grant sanctions where a party has filed a motion to compel, and the other party fails to file an opposition. (C.R.C. Rule 3.1348(a).)

Defendants

request \$765 in sanctions for each of the FROG, SROG, RPD, and RFA motions against Lopez and his attorney (= [1 hour for the motion + 2 anticipated hours to review the opposition, draft the reply, and attend the hearing at \$237/hour] + \$60 in filing fees). (See e.g., Mendoza

FROG Decl., ¶7.) (The Court notes that the actual attorney's fees for 3 hours at \$273/hour would be \$819 per motion, plus filing fees.) The requests are granted in the reasonable amount of \$297 per motion totaling \$1,188.00. The Court finds that this amount is reasonable as these are straightforward, unopposed motions to compel initial responses and deem RFAs admitted and the motions are partially duplicative in nature.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendants/Cross-Complainants Karo Gary Karapetyan and Anna Sukiasyan's Discovery Motions came on regularly for hearing on July 17, 2026 with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE MOTIONS TO COMPEL PLAINTIFF BRYANT LOPEZ'S RESPONSES TO FORM INTERROGATORIES, SPECIAL INTERROGATORIES, AND REQUESTS FOR PRODUCTION OF DOCUMENTS ARE GRANTED. RESPONSES ARE TO BE MADE WITHIN 30 DAYS.

THE MOTION TO DEEM THE REQUESTS FOR ADMISSION ADMITTED IS GRANTED AS AGAINST PLAINTIFF BRYANT LOPEZ.

PLAINTIFF BRYANT
LOPEZ

and HIS counsel of record, jointly and severally, are ordered to pay \$1,188 in monetary sanctions to DEFENDANTS, by and through counsel, within 30 days of this order.

DEFENDANT KARAPETYAN TO PROVIDE NOTICE.

IT

IS SO ORDERED.